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|    |                                                                                         | <p>defend the action was not caused by the party’s avoidance of service or inexcusable neglect, it may set aside the default or default judgment on whatever terms as may be just and allow the party to defend the action.”</p> <p>Defendant does not dispute he was personally served on 2/24/26. (Jones Decl., ¶ 7.) Defendant also demonstrates he was aware of the action as he retained Kamath less than a month later to assist Defendant in representing himself in the action. (Jones Decl., ¶ 8.) Accordingly, the Court finds Defendant has not demonstrated lack of “actual notice” required by section 473.5.</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                              |
| 8. | <b>TMVG ENTERPRISES, INC.<br/>VS. WORKHORSE &amp;<br/>UNICORN LLC<br/>2025-01524893</b> | <p><b>1. DEMURRER TO CROSS-COMPLAINT</b></p> <p>Cross-Defendants TVMG Enterprises, Inc. and Vasili Gatsinaris’s Demurrer to the Cross-Complaint is SUSTAINED with 20 days’ leave to amend.</p> <p>First, the Cross-Complaint fails to comply with California Rules of Court, rule 2.111, because it does not have a proper caption on its first page.</p> <p><u>Uncertainty</u></p> <p>With regards to uncertainty, the court will only sustain a demurrer for uncertainty if it is so poorly drafted that defendants cannot reasonably respond. (<i>Khoury v. Maly’s of California Inc.</i> (1993) 14 Cal.App.4th 612, 616.).</p> <p>The Cross-Complaint is not so uncertain Cross-Defendants cannot respond. Thus, the demurrer is overruled on these grounds.</p> <p><u>1st and 2nd Causes of Action – Intentional and Negligent Misrepresentation</u></p> <p>“The elements of fraud, which give rise to the tort action for deceit, are (a) misrepresentation (false representation, concealment, or nondisclosure); (b) knowledge of falsity (or scienter); (c) intent to defraud, i.e., to induce reliance; (d) justifiable reliance; and (e) resulting damage.” (<i>Lazar v. Superior Court</i> (1996) 12 Cal.4th 631, 638 (cleaned up).) “In California, fraud must be pled specifically; general and conclusory allegations do not suffice. Thus, the policy of liberal construction of the pleadings will not ordinarily be invoked to sustain a pleading defective in any material respect. This particularity requirement necessitates pleading facts which show how, when, where, to whom, and by what means the representations were tendered.” (<i>Id.</i> at 645 (cleaned up).) “A plaintiff’s burden in asserting a fraud claim against a corporate employer is even greater. In such a case, the plaintiff must allege the names of the persons who made the allegedly fraudulent representations, their authority to</p> |

... speak, to whom they spoke, what they said or wrote, and when it was said or written.” (*Ibid.*)

Cross-Complainant has failed to sufficiently allege its fraud claim. It alleges “Cross-Defendants expressly represented to Cross-Plaintiffs that Cross Plaintiffs could legally operate a gym and fitness facility at the premises ....” (XC, ¶ 18.) This allegation lacks sufficient specificity as to who made the statement and when the statement was made. Additionally, as to TVMG, Cross-Complainant has not alleged who made the representation and their authority to speak for TVMG.

Thus, the demurrer to the 1st cause of action is sustained with leave to amend.

### 3rd Cause of Action – Breach of Contract

The elements of a claim for breach of contract are “(1) the existence of the contract, (2) plaintiff's performance or excuse for nonperformance, (3) defendant's breach, and (4) the resulting damages to the plaintiff.” (*D'Arrigo Bros. of California v. United Farmworkers of America* (2014) 224 Cal.App.4th 790, 800.)

Cross-Complainant have not sufficiently alleged a performance or an excuse for nonperformance.

### Leave to Amend

“Unless the complaint shows on its face that it is incapable of amendment, denial of leave to amend constitutes an abuse of discretion, irrespective of whether leave to amend is requested or not.” (*McDonald v. Sup.Ct.* (1986) 180 Cal.App.3d 297, 303-304.) The Complaint does not show from its face it is incapable of being amended. Thus, leave to amend is granted.

## **2. MOTION TO STRIKE PORTIONS OF CROSS-COMPLAINT**

Cross-Defendants TVMG Enterprises, Inc. and Vasili Gatsinaris’s Motion to Strike is CONTINUED to 11/6/26 at 9:00 a.m., in Dept. C32.

Cross-Defendants did not file a declaration of their meet and confer efforts with Cross-Complainant regarding its Motion to Strike as required by Code of Civil Procedure section 435.5(a)(3). However, “[a] determination by the court that the meet and confer process was insufficient shall not be grounds to grant or deny the motion to strike.” (Code Civ. Proc., § 435.5(a)(4).)

The parties are ordered to meet and confer within 45 days of this order. Cross-Defendants are ordered to file a declaration no later

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|     |                                                                     | <p>than 16 court days before the continued hearing date regarding the parties meet and confer efforts. Should Cross-Complainant file an amended pleading in the time provided under the Court's ruling on the demurrer, the parties need not comply with this ruling as to this motion.</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                    |
| 10. | <p><b>STEINMAN VS. FORD<br/>MOTOR COMPANY<br/>2024-01446515</b></p> | <p><b>MOTION FOR SUMMARY JUDGMENT AND/OR<br/>ADJUDICATION</b></p> <p>Defendant Ford Motor Company's unopposed Motion for Summary Adjudication is GRANTED.</p> <p>Ford moves for summary adjudication of the sixth causes of action for fraudulent inducement – concealment.</p> <p><u>Legal Standard:</u></p> <p>Code of Civil Procedure section 437c(c) provides: “(c) The motion for summary judgment shall be granted if all the papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to a judgment as a matter of law. In determining if the papers show that there is no triable issue as to any material fact, the court shall consider all of the evidence set forth in the papers, except the evidence to which objections have been made and sustained by the court, and all inferences reasonably deducible from the evidence, except summary judgment shall not be granted by the court based on inferences reasonably deducible from the evidence if contradicted by other inferences or evidence that raise a triable issue as to any material fact.</p> <p>Section 437c(o)-(p) states:</p> <p>“(o) A cause of action has no merit if either of the following exists:<br/> (1) One or more of the elements of the cause of action cannot be separately established, even if that element is separately pleaded.<br/> (2) A defendant establishes an affirmative defense to that cause of action.</p> <p>(p) For purposes of motions for summary judgment and summary adjudication:<br/> (1) A plaintiff or cross-complainant has met his or her burden of showing that there is no defense to a cause of action if that party has proved each element of the cause of action entitling the party to judgment on the cause of action. Once the plaintiff or cross-complainant has met that burden, the burden shifts to the defendant or cross-defendant to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto. The defendant or cross-defendant shall not rely upon the allegations or denials of its pleadings to show that a triable issue of material fact exists but, instead, shall set forth the specific facts showing that a</p> |